



Remedies (Damages and Injunctions)

LAW.224 Tort Law

Week 20

Lectures 39 & 40

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Aims of Week 20 Lecture



By the end of this week's lectures:

- ❖ You will understand the two main remedies available in tort;
- ❖ You will understand distinctions between the different types of remedy;
- ❖ You will be able to determine which remedy is most appropriate in a given circumstance; and
- ❖ You will remember to **always** consider remedies in a problem question!

Damages and Injunctions

Damages

- Compensatory
- Nominal
- Aggravated
- Exemplary
- Vindictory
- Gain-Based
(Licence/Disgorgement)



Injunctions

- Prohibitive
- Mandatory



Compensatory Damages

Compensatory Damages

General Damages
Damages
(Non-pecuniary loss)
loss)

Pain, Suffering and Loss of
Amenity
(PSLA)

Future Losses

Special
(Pecuniary

For example:
Loss of Earnings
Medical Expenses
Travel Costs
Care
(Formal/Informal)...

Compensatory Damages - General

The aim of general damages is to:

1. Put the C back in the position they would have been in but for the D's wrong; and
2. To compensate the C with a financial sum.

Livingstone v The Rawyards Coal Company (1880) 5 App. Cas. 25, 39 per Lord Blackburn:

It is 'a general rule that, where any injury is to be compensated by damages, in settling the sum of money to be given for reparation of damages you should as nearly as possible get at that sum of money which will put the party who has been injured, or who has suffered, in the same position as he would have been in if he had not sustained the wrong'.

Consider: Can a financial award fully compensate for the loss?

Compensatory Damages - Awareness?

Wise v Kaye [1962] 1 Q.B. 638

'No claim for pain and suffering has arisen here in any form for, it would seem mercifully, the C has remained unconscious.'

(Sellers LJ, 649)

S 1(1)(b) Administration of Justice Act 1982

'if the injured person's expectation of life has been reduced...the court, in assessing damages in respect of pain and suffering...shall take account of any suffering caused or likely to be caused to him by awareness that his expectation of life

H West & Son Ltd v Shephard [1964] AC 326

'An unconscious person will be spared pain and suffering and will not experience the mental anguish which may result from knowledge of what has in life been lost or from knowledge that life has been shortened. The fact of unconsciousness is therefore relevant in respect of and will eliminate those heads or elements of damage which can only exist by being felt or thought or experienced. The fact of unconsciousness does not, however, eliminate the actuality of the deprivations of the ordinary experiences and amenities of life which may be the inevitable result of some physical injury.'

(Lord Morris, 349)

Compensatory Damages - Special

The aim of special damages is to:

1. Put the C back in the position they would have been in but for the D's wrong; and
2. To reimburse the C for any incurred pecuniary losses; **[and?]**
3. To compensate for any future pecuniary/quantifiable losses (**but also future non-pecuniary losses**).

Performance Cars v Abraham [1962] 1 Q.B. 33: 'The question, as I see it, is this: What extra burden in the matter of respraying was put upon the [Appellant] by the second collision? To my mind the answer must be: None, for the earlier collision had already imposed the burden of

Dodd Properties Ltd. and Another v Canterbury City Council and Others [1980] 1 W.L.R. 433: 'The general principle is that damages must be assessed as at the date when the damage occurs. It is not, of course, to be rigidly applied as a rule of thumb...The damage may be concealed...or not reasonably discoverable...until some time after it has first appeared...Moreover, repairs cannot usually be put in hand at once and at prices...at the very date of damage...Furthermore, the nature and circumstances of the damage may be such that it would be imprudent and possibly wasteful to begin the work before waiting longer to ensure that no further damage is going to develop from the same cause....The appropriate damages are the cost of repairs at the time when it was reasonable to begin repairs.' (Cantley J, 444)

Informal Care

Compensatory Damages - Calculating (not assessed)

Q: How do we calculate PSLA?

A: i) Judicial College Guidelines; and
ii) Precedent (Kemp & Kemp: Quantum of Damages).

Q: How do we calculate special damages (past losses)?

A: With evidence (receipts/statements etc.

Q: How do we calculate future losses?

A: Varies – with evidence (quotations), but long-term losses – multiplier/multiplicand (Ogden Tables)

JCG (17th edn.) Example Segment – Ankle Injuries:

(c)	Moderate	£16,770 to £32,450
	Fractures, ligamentous tears and the like which give rise to less serious disabilities such as difficulty in walking on uneven ground, difficulty standing or walking for long periods of time, awkwardness on stairs, irritation from metal plates, and residual scarring. There may also be a risk of future osteoarthritis.	
(d)	Modest Injuries	Up to £16,770
	The less serious, minor or undisplaced fractures, sprains, and ligamentous injuries. The level of the award within the bracket will be determined by whether or not a complete recovery has been made and, if recovery is incomplete, whether there is any tendency for the ankle to give way, and whether there is scarring, aching or discomfort, loss of movement, or the possibility of long-term osteoarthritis.	
	Where recovery is complete without any ongoing symptoms or scarring, the award is unlikely to exceed £9,390 . Where recovery is complete within a year, the award is unlikely to exceed £6,710 . Modest injuries that resolve within a short space of time will attract lower awards.	

Valuing a claim: Not an exact science, but a skill gained in practice.
N.B. This page is information only. You are **not** assessed on this and will never have sufficient information to value a claim, and therefore you do **not** get marks for trying to do so.

An Update re: “Lost Years”

See Chapter 21 at 21.3.1, p. 641-642

- Your textbook makes reference to the case of *CCC v Sheffield Teaching Hospitals NHS Foundation Trust* [2023] EWHC 1770 and that an appeal has been made to the Supreme Court.
- We now have that judgment (18 February 2026): *CCC (by her mother and litigation friend MMM) (Appellant) v Sheffield Teaching Hospitals NHS Foundation Trust (Respondent)* [2026] UKSC 5.
- **Facts:** Life expectancy of infant Claimant reduced due to harm caused by Defendant’s admitted negligence at birth.
- **Historically:**
 - *Croke v Wiseman* [1982] 1 WLR 71 said no recovery for infant claimants
 - Recovery has always been possible for adults/adolescents where life expectancy reduced
- **Issue:** Could a Claimant so young recover for losses within their “lost years” (i.e. average life expectancy less current life expectancy)?
- **Judgment:**
 - *Croke* overruled
 - In a 4:1 decision
 - Claimant in *CCC v Sheffield* can recover for “lost years”

Compensatory Damages - Deductions

Other income/support whilst injured, for example:

- NHS (Compensation Recovery Unit)
- Social Security Benefits (CRU)
- Charity
- Insurance
- Sick Pay...

Also note and do not forget that the C has a duty to mitigate their losses!

3 ways to make deductions:

1. Make D liable only for the actual losses suffered by C, deducting benefits received – but this effectively subsidises the D...
2. Ignore other benefits and make D fully liable – but this means accepting that C is over-compensated...
3. Make D liable only for the actual losses suffered by C, but render D liable to repay all those who supported C pre-trial...

(Paula Giliker, *Tort* (6th edn, Sweet & Maxwell 2017), 1086)

How are damages paid

- Lump sum
- Periodical payment
- Structured settlement



N.B. Settlements on behalf of infants (Civil Procedure Rules, Part 21 - Rule 21.10):

(1) Where a claim is made by or on behalf of a child or protected party ... no settlement, compromise or payment ... shall be valid, so far as it relates to the claim by ... the child or protected party, without the approval of the court

(3) The documents supporting any application or request for approval must include [some of the following, and by way of example]:

- details of liability agreement;
- legal opinion on quantum of damages; and
- medical evidence.

Rule 21.11: If the settlement is approved the damages are paid into the Court Funds Office until the child reaches the age of eighteen years

Consider Types of Damage Available...

(a) Pete is left permanently unconscious after a car accident. His life expectancy is reduced from 25 to 5 years. He has no awareness of his predicament.

(b) In a car accident, Aisha, who earns £1 million a year, and Chris, who earns £16,000 a year, both lose their right leg. Aisha is able to return to work, but Chris is not.

(c) Claudine suffers a knock to her head at work as a result of an unsafe workplace and becomes colour blind. Her hobby before the accident was to collect and appreciate modern art, she can no longer continue with this hobby.

Fatal and Near Fatal Accidents: Reasoning behind recoverability

Wise v Kaye [1962] 1 Q.B. 638

'...I would myself think that damages for death must necessarily be assessed upon a different basis from the damages to a person who continues to live. But it would, I think, be a very great slur upon the law, if the complete doctrine is that it is cheapest to kill but if you cannot kill then reduce damages by injuring him so severely that it is most improbable that he can personally use the damages.'

(659 per Upjohn LJ)

Actions on Death

Survival Actions

Law Reform (Miscellaneous Provisions) Act 1934

C's right to sue D survives for the benefit of the **C's estate**

The C's estate then sues for the losses sustained by the C **up to** the date of death

Fatal Accident Actions

Fatal Accidents Act 1976

3 rights of action for **C's dependants** (defined by **s 1(3)** – spouse/cohabitant/child/parent...) where the tort caused the death:

- (i) Loss of support
- (ii) Bereavement...(s 1A - £15,120 – spouse/cohabitant or parent if C a minor – see **Damages for Bereavement (Variation of Sum) (England and Wales) Order 2020**)
- (iii) Funeral expenses

S 4, 1976 Act: A person can sue under both the 1934 and 1976 Acts where they are not just a dependant (1976 Act) but also represent the estate (1934 Act)

Note: This is **not** double damages because the 1934 Act only allows for claims the deceased may have made in respect of what he/she lost up to death.

1934 Act - Action by the C's estate

- 1934 Act does **not** give the estate a cause of action for the death itself
- The estate may pursue actions existing at the time of the C's death
- Damages for pecuniary and non-pecuniary losses up to the date of death may be recovered under the 1934 Act
- ***Hicks v Chief Constable of the South Yorkshire Police [1992] 2 All ER 65:***
 - No sum awarded if death is instantaneous or quick
 - *'...[no] physical injury was caused before the fatal crushing injury...fear of impending death felt by the victim of a fatal injury before that injury is inflicted cannot by itself give rise to a cause of action which survives for the benefit of the victim's estate.'* (per Lord Bridge, 69)
 - **Note this distinction:** *'if the injured person's expectation of life has been reduced by the injuries, the court, in assessing damages in respect of pain and suffering caused by the injuries, shall take account of any suffering caused or likely to be caused to him by awareness that his expectation of life has been so reduced.'* (s 1(1)(b), Administration of Justice Act 1982)

1976 Act - Action by the C's dependants

- **S 1**: Hybrid action – action of the dependants, but relies on the fact that the C could have sued the D
- 2 requirements for bringing an action:
 - C must be a “dependant” within **s.1(3)** – includes et al spouse/civil partner/cohabitant/parent/child; and
 - C must have been financially dependent on the deceased
 - **Note:** restrictions on claims for bereavement damages (**s 1A**) -
 - spouse/civil partner/cohabitant or parent if C a minor

Examples

Q	Yes/No	Authority?
Can unconscious C claim for pain and suffering?	No	<i>Wise v Kay</i>
Can unconscious C claim for loss of amenity?	Yes	<i>West v Shephard</i>
Can C claim for the awareness of shortened life expectancy?	Yes	S 1(1)(b) Administration of Justice Act 1982
Does D have to compensate someone who helps C out of love?	Yes	<i>Donnelly v Hunt</i>
Event	Relevant Statute?	Possible claim?
C dies after 10 months leaving widow and children.	1934 Act & 1976 Act	Past losses to death (non-pecuniary & pecuniary) + Loss of Support + Bereavement + Funeral
C dies instantly leaving no dependants.	N/A	N/A (See <i>Hicks v CC South Yorkshire</i>)
C dies after 6 months leaving no dependants.	1934 Act	Past losses to death (non-

Nominal Damages

- No tangible harm
- Only available in torts that are actionable per se (trespass to land, trespass against the person, rights-based nuisances (e.g. light))
- Why claim nominal damages:
 - a) Gateway to found a claim in other damages – such as aggravated damages. You have to show there has been a tort and some other remedy is available in relation to it.
 - b) To clear one's name or as a matter of right (moral). **Constantine v Imperial Hotels [1944] KB 693**
 - c) To establish a right. **White v Withers LLP [2009] EWCA Civ 1122**



Aggravated Damages

***Rookes v Barnard* [1964] A.C. 1129**

1221 per Lord Devlin

'...it is very well established that in cases where the damages are at large the jury (or the judge...) can take into account the motives and conduct of the D where they aggravate the injury done to the C. There may be malevolence or spite or the manner of committing the wrong may be such as to injure the C's proper feelings of dignity and pride. These are matters which...[can be taken] into account in assessing the appropriate compensation. Indeed, when one examines the cases in which large damages have been awarded for conduct of this sort, it is not at all easy to say whether the idea of compensation or the idea of punishment has prevailed.'

Exemplary Damages (Punitive Damages)

Rookes v Barnard [1964] A.C. 1129

1226-227 per Lord Devlin:

- i. Oppressive, arbitrary or unconstitutional acts by government servants;

Thompson v Commissioner of Police for the Metropolis [1998] Q.B. 498

- ii. Defendant's conduct was calculated by him to make a profit for himself which might well exceed the compensation payable to the plaintiff; and

Broome v Cassell & Co Ltd [1972] A.C. 1027

- iii. Expressly authorised by statute.

See now: *Kuddus v Chief Constable of Leicestershire Constabulary [2001] UKHL 29*; and

Rees v Commissioner of Police of the Metropolis [2021] EWCA Civ 49

Vindictory Damages and/or Gain-Based Damages

Vindictory Damages

Should we have (more) of them to mark the infringement of fundamental rights (e.g. those found in the HRA)?

❖ *Lumba v Secretary of State for Home Department* [2011] UKSC 12

- False imprisonment
- 6/3 in favour of the Claimant
- Some in favour of vindictory damages
- We cannot say they are recoverable on the basis of this decision
- But we have...

Gain-Based Damages

Are they vindictory too?

Licence fee damages/Disgorgement damages (e.g. in trespass to land protruding signs into C's air space which D uses to advertise – see: *Morris-Garner v One Step (Support) Ltd* [2019] A.C.

Injunctions

1. Prohibitive – orders D **not** to act in a certain way (to stop the D doing something)
2. Mandatory – orders D to act in a certain way (to compel the D to do something)

- A remedy on its own or in conjunction with damages
- No injunction in negligence



Additional Reading

- J Murphy, 'The Nature and Domain of Aggravated Damages' (2010) Vol 69(2) Cambridge Law Journal 353-377
- J Goudkamp and E Katsampouka, 'Punitive Damages and the Place of Punishment in Private Law' (2021) 84(6) Modern Law Review 1257-1293
- N Cooksley 'Personal injury: damages – fatal accidents – scope of s.4 Fatal Accidents Act 1976' (2009) Vol 1 Journal of Personal Injury Law 28-30
- J Murphy, 'Rethinking Injunctions in Tort Law' (2007) Vol 27(3) Oxford Journal of Legal Studies 509-535





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End Slide

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